

STATE OF NEW YORK

8932 --A

IN SENATE

January 16, 2026

Introduced by Sens. MATTERA, ASHBY, BORRELLO, CHAN, GRIFFO, MARTINS, OBERACKER, PALUMBO, RHOADS, STEC, TEDISCO, WEBER, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to establishing a persistent domestic violence offender registry

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Savanna's Law".

3 § 2. The executive law is amended by adding a new section 837-aa to
4 read as follows:

5 § 837-aa. Persistent domestic violence offender registry. 1. As used
6 in this section, the following terms shall have the following meanings:

7 (a) "Convicted" and "conviction" mean a verdict of guilty by a judge
8 or jury or a plea of guilty and include a plea of nolo contendere and a
9 best interest plea accepted by the court.

10 (b) "Victim of domestic violence" has the same meaning as defined in
11 section four hundred fifty-nine-a of the social services law.

12 (c) "Persistent domestic violence offender" means a person who:

13 (i) has been convicted in this state of a domestic violence offense;
14 and

15 (ii) has at least one prior conviction for a domestic violence
16 offense.

17 (d) "Domestic violence" means an act which would constitute a
18 violation of the penal law, including, but not limited to acts consti-
19 tuting disorderly conduct, harassment, aggravated harassment, sexual
20 misconduct, forcible touching, sexual abuse, stalking, criminal
21 mischief, menacing, reckless endangerment, kidnapping, assault,
22 attempted assault, attempted murder, criminal obstruction of breathing
23 or blood circulation, strangulation, identity theft, grand larceny or
24 coercion, which have been committed by a family or household member of
25 the victim.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD14459-02-6

1 (e) "Family or household members" mean the following individuals:

2 (i) persons related by consanguinity or affinity;

3 (ii) persons legally married to one another;

4 (iii) persons formerly married to one another regardless of whether
5 they still reside in the same household;

6 (iv) persons who have a child in common regardless of whether such
7 persons are married or have lived together at any time;

8 (v) unrelated persons who are continually or at regular intervals
9 living in the same household or who have in the past continually or at
10 regular intervals lived in the same household;

11 (vi) persons who are not related by consanguinity or affinity and who
12 are or have been in an intimate relationship regardless of whether such
13 persons have lived together at any time. Factors that may be considered
14 in determining whether a relationship is an "intimate relationship"
15 include, but are not limited to: the nature or type of relationship,
16 regardless of whether the relationship is sexual in nature; the frequen-
17 cy of interaction between the persons; and the duration of the relation-
18 ship. Neither a casual acquaintance nor ordinary fraternization between
19 two individuals in business or social contexts shall be deemed to
20 constitute an "intimate relationship"; or

21 (vii) any other category of individuals deemed to be a victim of
22 domestic violence as defined by the office of children and family
23 services in regulation.

24 2. (a) There is created within the division a registry of persistent
25 domestic violence offenders.

26 (b) The division shall maintain this registry based upon information
27 supplied to the division by the court clerks pursuant to paragraphs (c)
28 and (d) of this subdivision and information available to the division
29 from the department of corrections and community supervision and state
30 and local law enforcement agencies. The division shall make the registry
31 available for public inquiry on the internet.

32 (c) The registry shall consist of the persistent domestic violence
33 offender's name, date of birth, conviction date, county or counties of
34 convictions, and a current photograph of the persistent domestic
35 violence offender. If available after reasonable inquiry, the court
36 clerk shall provide the division with a copy of the persistent domestic
37 violence offender's driver license, or other state or federal identifi-
38 cation, and such other identifying data as the division determines is
39 necessary to properly identify the persistent domestic violence offender
40 and exclude innocent persons. However, the registry available for public
41 inquiry must not include the persistent domestic violence offender's
42 address, social security number, driver license number, or any other
43 state or federal identification number.

44 (d)(i) If a person is convicted of an offense committed against a
45 victim of domestic violence and the person convicted has at least one
46 prior conviction for an offense committed against a victim of domestic
47 violence, then the court shall, upon proof of any prior convictions
48 committed against a victim of domestic violence, order the defendant to
49 register as a persistent domestic violence offender under this section.

50 (ii) If a court orders a defendant to register under this section,
51 then the court clerk shall forward to the division a certified copy of
52 the qualifying conviction and the date of birth of the defendant. The
53 court clerk shall forward the information to the division within seven
54 days of the date of the conviction.

55 (e) In addition to any other punishment that may be imposed for a
56 conviction of the offense, a defendant required to register under this

1 section shall be assessed a registration fee in the amount of one
2 hundred fifty dollars, which shall be paid to the clerk of the court
3 imposing the sentence, who shall:

4 (i) Retain fifty dollars of the fee for the administration of this
5 section, which shall be reserved for the purposes authorized by this
6 section at the end of each fiscal year; and

7 (ii) Remit one hundred dollars of the fee to the domestic violence
8 awareness fund established pursuant to section ninety-seven-yyy of the
9 state finance law, as added by chapter six hundred thirty-four of the
10 laws of two thousand two.

11 (f) The division shall remove from the registry the name and other
12 identifying information of a persistent domestic violence offender
13 required to register under this section:

14 (i) Five years after the date of the most recent conviction for an
15 offense committed against a domestic abuse victim if the defendant has
16 one prior conviction for an offense committed against a victim of domes-
17 tic violence;

18 (ii) Seven years after the date of the most recent conviction for an
19 offense committed against a domestic abuse victim if the defendant has
20 two prior convictions for an offense committed against a victim of
21 domestic violence;

22 (iii) Ten years after the date of the most recent conviction for an
23 offense committed against a domestic abuse victim if the defendant has
24 three prior convictions for an offense committed against a victim of
25 domestic violence; and

26 (iv) Twenty years after the date of the most recent conviction for an
27 offense committed against a domestic abuse victim if the defendant has
28 four or more prior convictions for an offense committed against a victim
29 of domestic violence.

30 (g) Prior to including a persistent domestic violence offender on the
31 registry established pursuant to this section, the division shall
32 provide the domestic abuse victim the option of declining to have such
33 persistent domestic violence offender included on the registry.

34 3. This section applies only to persons convicted of a domestic
35 violence offense that occurred on or after January first, two thousand
36 twenty-seven; provided, however, that a prior conviction for the
37 purposes of this section may have occurred before such date.

38 § 3. This act shall take effect January 1, 2027.